

CV-25-012731 ORTEGA, OFELIA vs VASQUEZ, RUBEN – Defendant’s Motion to Dismiss Partition Action for Lack of Jurisdiction – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: The motion to dismiss—which appears to be a reiteration of a prior motion to dismiss that was heard on June 11, 2026—is again DENIED as procedurally defective. As Plaintiff states in her opposition to the motion, “... California law does not authorize dismissal of a complaint through a freestanding motion to dismiss based upon the grounds asserted in Defendant’s motion. Rather, the California Code of Civil Procedure provides specific procedural mechanisms for challenging a pleading, each governed by its own statutory requirements.” (Opp., at p. 3.) Such procedural mechanisms include a demurrer, a motion to strike, or a motion for judgment on the pleadings. Alternatively, a party may file a motion for summary judgment or summary adjudication. Plaintiff has requested that the Court sanction Defendant under Code of Civil Procedure § 128.7 or any other applicable statute. That request is DENIED at this time; a motion for sanctions under § 128.7 must strictly comply with certain procedural requirements, including that the motion must be made separately from any other motion and must provide a safe-harbor period. (See Code Civ. Proc., § 128.7(c)(1).) However, Defendant should consider himself on notice that any failure to heed Court advisements and the repeated filing of motions making the same arguments may result in monetary sanctions in the future.

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